

25STCV12409 25STCV12409

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV12409 Hearing Date: July 8, 2026 Dept: 529

ALVARO AGUILERA VAZQUEZ VS GENERAL MOTORS, LLC

DEFENDANT GENERAL

MOTORS LLC'S DEMURRER TO THE SECOND AMENDED COMPLAINT

Date

of Hearing: July 8, 2026 Trial Date: None set.

Department:

529 Case

No.: 25STCV12409

Moving

Party: Defendant General

Motors, LLC

Responding

Party: Plaintiff Alvaro Aguilera

Vazquez

Meet

and Confer: Yes. (Allison Decl.)

BACKGROUND

This is a lemon law action. On April 29, 2025,

Plaintiff Alvaro Aguilera Vazquez filed a complaint against Defendant General

Motors, LLC for various violations of the Song-Beverly Consumer Warranty Act as

well as Fraudulent Inducement – Concealment. On October 10, 2025, Plaintiff filed a First Amended Complaint. Plaintiff filed a Second Amended Complaint on March 23, 2026.

[TENTATIVE]

RULING:

Defendant General Motors, LLC's Demurrer to the Second Amended Complaint is OVERRULED.

REQUEST FOR
JUDICIAL NOTICE

Defendant General Motors, LLC request this court take judicial notice of the list of all manufacturers that have elected to opt-in to Code of Civil Procedures section 871.20 et seq, as maintained on the California Department of Consumer Affairs' government website, as of November 10, 2025.

The court GRANTS the request for judicial notice.

DISCUSSION

Defendant General Motors, LLC demurs to the Second Amended Complaint on the grounds that Plaintiff's first, second and third causes of action alleging violations of the Song-Beverly Consumer Warranty Act are time-barred due to the expiration of the statute of limitations and Plaintiff's fourth cause of action is time-barred by the three-year statute of limitations.

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740,

747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Statute of Limitations – 1st, 2nd
and 3rd Causes of Action

GM demurs to the first, second, and third causes of action on the grounds the claims are barred by Song-Beverly's six-year statute of limitations.

Effective January 1, 2025, any “action covered by [Code of Civil Procedure] Section 871.20,” which includes any “action seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of [Civil Code] Section 1793.2,” “shall not be brought later than six years after the date of original delivery of the motor vehicle.” (CCP § 871.21(b).) There are three circumstances in which the time periods can be tolled: (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days. Additionally, “[a]n action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.” (CCP § 871.21(a).)

GM argues the complaint alleges Plaintiff entered into a warranty contract regarding the Subject Vehicle on September 2, 2017, with a 3-year bumper to bumper express warranty and a 5-year powertrain warranty. As a result, even assuming the date Plaintiff entered into the express warranty contract was the original delivery date of the Subject Vehicle, the statute of limitations would have run September 2, 2022.

Plaintiff, however, filed their initial complaint April 29, 2025. Moreover, GM contends Plaintiff does not specifically allege any facts to even suggest that the first and third circumstances apply and as for the second, the days alleged still come nowhere near to tolling the claim. GM also contends although it believes only these enumerated circumstances apply to tolling the statute of limitations, Plaintiff still has not sufficiently alleged equitable tolling.

In opposition, Plaintiff argues this court already addressed the issues with Section 871.21 in its ruling on the previous demurrer and Plaintiff has amended the pleadings to show Plaintiff's delayed discovery. Plaintiff contends they could not have discovered that GM had not repaired the Vehicle under warranty until the repairs proved ineffective, recurring shortly after the expiration of the warranty.

The court finds the allegations sufficient for the purposes of a demurrer. As noted by Plaintiff, the complaint alleges the Vehicle continued to experience defects despite repair attempts. Moreover, the pleadings GM issued numerous Technical Service Bulletins which purported to address the vehicle's symptoms but failed to do so and resulted in Plaintiff being unable to discover Defendant's wrongful conduct. Construed favorably, as required on demurrer, these allegations are sufficient to invoke the delayed discovery rule.

Based on the foregoing, the demurrer to the first, second and third causes of action is OVERRULED.

Statute of Limitations – 4th Cause of Action

GM demurs to the fourth cause of action for fraudulent inducement – concealment on the grounds the claim is barred by the statute of limitations.

Code of Civil Procedure section 338(d) states that a party has three years to bring an action for relief on the ground of fraud or mistake, and that “[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (CCP § 338(d).)

GM argues to assert a fraud claim, Plaintiff had to

file a claim no later than September 2, 2020. However, Plaintiff did not file the complaint until April 29, 2025 — over four years too late. GM contends Plaintiff cannot invoke the delayed discovery rule because Plaintiff affirmatively states that the alleged “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period....” (SAC, ¶ 23.) Because the allegations concede the effects and nonconformities manifested during the express warranty period, Plaintiff cannot allege delayed discovery with reasonable diligence.

The court finds the allegations are now sufficient for the purposes of a demurrer. The SAC now alleges up to June 2024, the defect persisted despite repair attempts and it was around June 2024 when Plaintiff discovered the fraudulent conduct when the 8-speed transmission could not be repaired. Construed favorably, these allegations are sufficient to show specific facts to show the manner of discovery, as is required.

Based on the foregoing, the demurrer to the fourth cause of action is OVERRULED.